



Prosecution of Offences Act 1979

1979 CHAPTER 31

An Act to consolidate certain enactments relating to the prosecution of offences in England and Wales and to repeal certain obsolete enactments relating thereto.

[4th April 1979]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

The Director of Public Prosecutions

1.—(1) The Secretary of State may appoint the Director of Public Prosecutions (in this Act referred to as “the Director”); but a person shall not be so appointed unless he is a barrister or solicitor of not less than ten years standing.

The Director
of Public
Prosecutions
and Assistant
Directors.

(2) The Secretary of State may also appoint such number of Assistant Directors of Public Prosecutions (in this Act referred to as “Assistant Directors”) as the Minister for the Civil Service sanctions; but a person shall not be so appointed unless he is a barrister or solicitor of not less than seven years standing.

(3) There shall be paid to the Director, and to any Assistant Director so appointed, such remuneration as the Minister for the Civil Service may determine.

(4) An Assistant Director may do any act or thing which the Director is required or authorised to do by or in pursuance of any Act, or otherwise.

Duties of
Director.

2.—(1) It shall be the duty of the Director, under the superintendence of the Attorney General—

1968 c. 19.

(a) to institute, undertake or carry on such criminal proceedings (whether in the criminal division of the Court of Appeal, or in the House of Lords on appeal under Part II of the Criminal Appeal Act 1968 from the criminal division or from a divisional court of the Queen's Bench Division of the High Court, or in such a divisional court, or before the Crown Court, or before a magistrates' court, or otherwise) ; and

(b) to give such advice and assistance to chief officers of police, justices' clerks and other persons (whether officers or not) concerned in any criminal proceedings respecting the conduct of those proceedings,

as may be prescribed, or as may be directed, in a special case, by the Attorney General.

(2) The regulations shall provide for the Director's taking action in cases which appear to him to be of importance or difficulty, or which for any other reason require his intervention.

Directions to
Director to
appear on
appeals.

1960 c. 65.

3.—(1) Without prejudice to section 2 above, it shall be the duty of the Director to appear for the Crown or the prosecutor, when directed by the court to do so, on any appeal under—

(a) section 1 of the Administration of Justice Act 1960 (appeal from the High Court in criminal cases) ; or

(b) Part I or Part II of the Criminal Appeal Act 1968 (appeals from the Crown Court to the criminal division of the Court of Appeal and thence to the House of Lords).

(2) In subsection (1) above "the court" means—

(a) in the case of an appeal to or from the criminal division of the Court of Appeal, that division ; and

(b) in the case of an appeal from a divisional court of the Queen's Bench Division, the divisional court.

Saving for
private
prosecutions.

4. Nothing in this Act shall preclude any person from instituting or carrying on any criminal proceedings ; but the Director may undertake, at any stage, the conduct of those proceedings, if he thinks fit.

Delivery of
recognizances,
etc. to
Director.

5.—(1) Where the Director gives notice to any justice that he has instituted or undertaken or is carrying on any criminal proceedings, the justice shall, at the prescribed time and in the prescribed manner or at the time and in the manner directed, in a special case, by the Attorney General, send the Director every recognizance, information, certificate, deposition, document and

thing connected with those proceedings which the justice is required by law to deliver to the appropriate officer of the Crown Court.

(2) The Director shall—

- (a) subject to the regulations, cause anything which is sent to him under subsection (1) above to be delivered to the appropriate officer of the Crown Court ; and
- (b) be under the same obligation (on the same payment) to deliver to an applicant copies of anything so sent as the said officer.

(3) It shall be the duty of every justices' clerk to send the Director, in accordance with the regulations, a copy of the information and of any depositions and other documents relating to any case in which a prosecution for an offence before the magistrates' court to which he is clerk is withdrawn or is not proceeded with within a reasonable time.

Consents to prosecutions

6.—(1) This section applies to any enactment which prohibits the institution or carrying on of proceedings for any offence except—

Consents to prosecutions, etc.

- (a) with the consent (however expressed) of a Law Officer of the Crown or of the Director ; or
- (b) where the proceedings are instituted or carried on by or on behalf of a Law Officer of the Crown or the Director,

and so applies whether or not there are other exceptions to the prohibition (and in particular whether or not the consent is an alternative to the consent of any other authority or person).

(2) An enactment to which this section applies—

- (a) shall not prevent the arrest without warrant, or the issue or execution of a warrant for the arrest, of a person for any offence, or the remand in custody or on bail of a person charged with any offence ; and
- (b) shall be subject to any enactment concerning the apprehension or detention of children or young persons.

(3) In this section "enactment" includes any provision having effect under or by virtue of any Act ; and this section applies to enactments passed or made before the passing of this Act, or later.

7. Any document purporting to be the consent of a Law Officer of the Crown or the Director for, or to, the institution of any criminal proceedings or the institution of criminal proceedings

Consents to be admissible in evidence.

in any particular form and to be signed by a Law Officer of the Crown, the Director or an Assistant Director, as the case may be, shall be admissible as prima facie evidence without further proof.

Miscellaneous and general

Crime returns
of chief
officers of
police.

8.—(1) The chief officer of every police area in England and Wales shall give the Director information with respect to indictable offences alleged to have been committed within his area and the manner of dealing with those offences.

(2) The information given under subsection (1) above shall contain such particulars, and be in such form, as may be required by the regulations.

Regulations.

9.—(1) The Attorney General may, with the concurrence of the Secretary of State, make regulations for carrying this Act into effect.

(2) The power to make the regulations shall be exercisable by statutory instrument, which shall be subject to annulment in pursuance of a resolution of either House of Parliament.

Interpretation.

10. In this Act—

“Assistant Director” has the meaning given by section 1 above;

“consent” includes, sanction, fiat, direction or order;

“the Director” has the meaning given by section 1 above;

“a Law Officer of the Crown” means the Attorney General or the Solicitor General;

“prescribed” means prescribed by the regulations;

“the regulations” means the regulations made under section 9 above.

Consequential
amendments
and repeals.

11.—(1) The enactments specified in Schedule 1 to this Act shall have effect subject to the amendments there specified, being amendments consequential upon the provisions of this Act.

(2) The enactments specified in Part I of Schedule 2 to this Act (repeal of obsolete enactments) and those specified in Part II of that Schedule (consequential repeals) are hereby repealed to the extent specified in the third column of that Schedule.

Short title,
commence-
ment and
extent.

12.—(1) This Act may be cited as the Prosecution of Offences Act 1979.

(2) This Act shall come into force at the end of the period of one month beginning with the date on which it is passed.

(3) This Act shall not extend to Scotland or Northern Ireland.

SCHEDULES

Section 11.

SCHEDULE 1

CONSEQUENTIAL AMENDMENTS

Public Order Act 1936 (1 Edw. 8 & 1 Geo. 6, c.6)

In section 1(2) of the Public Order Act 1936 (as amended by Schedule 5 to the Criminal Jurisdiction Act 1975), for the words "section 12 of the Criminal Jurisdiction Act 1975" there shall be substituted the words "section 6 of the Prosecution of Offences Act 1979". 1975 c. 59.

Representation of the People Act 1949 (c.68)

In section 159 of the Representation of the People Act 1949, for the words "the Prosecution of Offences Act 1879" where they appear in subsections (4) and (9) there shall be substituted the words "the Prosecution of Offences Act 1979".

Theft Act 1968 (c.60)

In subsection (5) of section 30 of the Theft Act 1968 (which was added by Schedule 5 to the Criminal Jurisdiction Act 1975), for the words "section 12 of the Criminal Jurisdiction Act 1975" there shall be substituted the words "section 6 of the Prosecution of Offences Act 1979".

Section 11.

SCHEDULE 2

REPEALS

PART I

REPEAL OF OBSOLETE ENACTMENTS

Chapter	Short Title	Extent of Repeal
42 & 43 Vict. c. 22.	Prosecution of Offences Act 1879.	In section 5, the words "justice or", in the first place where they occur, and the words from "A failure" onwards.
8 Edw. 7. c. 3.	Prosecution of Offences Act 1908.	Section 7. Section 2(4).

PART II

CONSEQUENTIAL REPEALS

Chapter	Short Title	Extent of Repeal
42 & 43 Vict. c. 22.	Prosecution of Offences Act 1879.	The whole Act, so far as un- repealed.
47 & 48 Vict. c. 58.	Prosecution of Offences Act 1884.	The whole Act.
8 Edw. 7. c. 3.	Prosecution of Offences Act 1908.	The whole Act, so far as un- repealed.
15 & 16 Geo. 5. c. 86.	Criminal Justice Act 1925.	Section 34.
1965 c. 2.	Administration of Justice Act 1965.	Section 27.
1967 c. 80.	Criminal Justice Act 1967.	In Schedule 6, paragraph 2.
1968 c. 19.	Criminal Appeal Act 1968.	In Schedule 5, the entry relating to the Prosecution of Offences Act 1879.
1971 c. 23.	Courts Act 1971.	In Schedule 8, paragraph 13.
1975 c. 59.	Criminal Jurisdiction Act 1975.	Section 12. In section 14(2)(a), the words "12 and".